

Order Discharging Timeliness Show Cause

No government invocation

On July 8, 2025, the court reviews compliance with its June 27 order directing the institutional respondent to state by July 7 whether it invoked Section 1252(b)(1) against the petition received February 13. That period has expired, and the respondent filed no invocation motion, response, or request for additional time. The docket continues to show January 13 as the final-order date and February 13 as the petition receipt, but *Riley v. Bondi* establishes that the resulting filing-time issue is nonjurisdictional.

Because the rule benefits the respondent and was not invoked within the period expressly provided after *Riley*, the court will not enforce it on its own initiative. This conclusion does not declare the petition timely and does not create an equitable extension. It records the respondent's forfeiture on the stated docket and removes the timing hold so ordinary administration may resume.

Order Discharging Timeliness Show Cause Proceedings may continue

The show-cause inquiry is discharged on July 8, 2025. The clerk may proceed directly to record administration without recreating February-through-June events or treating them as though they occurred while the timing hold was in place. The agency and parties may address certification, any genuine omission, briefing, and merits under schedules fixed after this order. No merits question is resolved today.

Continued processing does not establish that A.R.M. is entitled to CAT protection, that the agency record requires correction, or that a post-order document may be considered. It means only that the court will not dismiss this February 13 petition on a filing rule the respondent did not invoke. The clerk shall serve both parties and record that the next stage concerns the agency review record.